

Smt. Jaimala W/O Dilip Kumar Goyal, D/O ... vs Delip Kumar Goyal S/O Kailashchand ... on 3 March, 2023

Author: Sameer Jain

Bench: Sameer Jain

[2023/RJJP/003670]

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Transfer Application No. 103/2020

Smt. Jaimala W/o Dilip Kumar Goyal, D/o Sitaram Ji, Aged About 37 Years, R/o Jhalawar, At Present Training Centre Kota Super Thermal Power Station, Kota, At Present Residing At Quarter No. E-66, Kota Thermal Colony, Sakatpura, Kunhari, Kota.

----Petitioner

Versus

Delip Kumar Goyal S/o Kailashchand Goyal, R/o Plot No. 16-A Sainath Vihar Colony, Devpura, Bundi, Tehsil And District Bundi, Rajasthan, Permanent Resident Of House No. 307, Gali No. 4, Near Powerhouse, Adarsh Nagar, Sector-1, Bayana, District Bharatpur, Presently Serving As Patwari, At Office Of Tehsildar (Land Record) Indragarh, Tehsil Indragarh, District Bundi.

----Respondent

For Petitioner(s) : None
For Respondent(s) : None

HON'BLE MR. JUSTICE SAMEER JAIN

Order

03/03/2023

1. None present on behalf of the parties. The matter

pertains to a matrimonial dispute and the law mandates that such cases should be disposed in a time bound manner.

2. No one is appearing on behalf of the parties on account of the ongoing lawyers strike. However, as per the judgment of Apex Court in Harish Uppal Vs. Union of India (UOI) and Ors. reported in (2003) 2 SCC 45, this court is constrained to take up the matter for final disposal as per the

pleadings, as the service in the matter is complete.

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3. This transfer application has been filed by the applicant-wife under Section 24 of the Code of Civil Procedure seeking transfer of Petition No. 185/2018 titled as Dilip Kumar Goyal Vs. Jaimala filed by the non-applicant-husband under Section 13 of the Hindu Marriage Act, 1955 from Family Court, Bundi to Family Court, Kota.

4. Transfer of the case is sought, primarily on the following grounds:

(i) That the applicant is presently residing in Kota.

(ii) That multiple cases are pending adjudication in District Kota;

including a case under Section 7 and 7a of the PC Act and 120B of IPC, against the non-applicant, where his presence is required on every date of hearing in the matter.

(iii) That the applicant does not have the infrastructural support, in terms of family members, who can accompany her to court proceedings, pending in Bundi.

(iv) That the applicant has the responsibility to look after her minor girl.

5. Considering the fact that a case is pending adjudication in District Kota where the non-applicant-husband's presence is required on every date of hearing in the matter; that the applicant is presently residing in District Kota as well; that the applicant does not have the infrastructural support, in terms of family members, who can accompany her to court proceedings, pending in Bundi; that the applicant has the responsibility to look after her minor daughter; considering the provisions of Section 19 of the Hindu Marriage Act and relying upon the judgments of the Apex Court in N.C.V. Aishwarya vs. A.S. Saravana Karthik Sha:

[2023/RJJP/003670] (3 of 3) [CTA-103/2020] Civil Appeal No. 4894/2022, Sumita Singh Vs. Kumar Sanjay & Ors.: AIR 2002 SC 396, Rajni Kishor Pardeshi Vs. Kishor Babulal Pardeshi: (2005) 12 SCC 237, and Vaishali Shridhar Jagtap Vs. Shridhar Vishwanath Jagtap: AIR 2016 SC 3584, this Court deems it just and proper to transfer the Petition No. 185/2018 from Family Court, Bundi to Family Court, Kota.

6. Accordingly, the present transfer application is allowed. The Petition No. 185/2018 be transferred from Family Court, Bundi to Family Court, Kota.

7. Both parties are directed to appear before the transferee court on 27.03.2023. By that time, the record of the case be transmitted to the transferee Court by the Court concerned. It is made clear that if any of the parties would not appear on the date fixed by this Court, the transferee court would be at liberty to proceed in accordance with law.

8. It is expected that the transferee court shall dispose of the matter as expeditiously as possible; preferably within the prescribed time period as stipulated in the Act.

9. Stay application and other pending applications, if any, stand disposed of.

(SAMEER JAIN),J Pooja /7 Powered by TCPDF (www.tcpdf.org)